



UTAH COMMON GROUND SOLUTIONS FORUM

On the Public's Role in Shaping Policy Decisions Related to AI

Solutions Forum Policy Prompts

This document is part of the briefing materials prepared for Delegates to the Utah Common Ground Solutions Forum on ***The Public's Role in Shaping Policy Decisions Related to AI***. Other background materials include [a briefing book](#), [a video overview](#), and [a slide deck overview](#).

This document includes **17 policy prompts** to stimulate your thinking as Delegates. They are grouped into the following themes, which will anchor part of the Solutions Forum discussion:

Key Stages of Public Consultation When Thinking about AI-related Decisions:

- I. Provide reliable public access to accurate, high-quality information related to policy areas AI could influence
- II. Include the public in thorough due diligence before new AI policies are adopted
- III. Design AI-related policy choices to remain accountable to the needs and priorities of the public
- IV. Continue to verify ongoing efficiency and public benefit of AI-related policies or programs

See what you think, and don't hesitate to make note of additional ideas you'd like to suggest be considered — these lists are not intended to be comprehensive, and the best ideas are likely to come from you.

A few last things to consider:

- As you review these topics, think through your goal: If the issue in question were successfully addressed, what would be different? What problem would be solved, and how?
- Think about which proposals strike you as being the most impactful. How would this be defined? Would there be a cost? If so, how could it be funded?
- Another set of considerations may relate to the probability of securing a given change in the first place: Does it require legislation? *Is it something people can just start doing on their own?* These factors may be just as relevant to your choice as your sense of its inherent value.
- Are there interventions you think make sense that aren't on this list? *If so, please note them, and consider sharing your ideas with your Delegate colleagues at the Solutions Forum!*

(Intentionally blank)

I. Provide Reliable Public Access to Accurate, High-Quality Information Related to Policy Areas AI Could Influence

Access to good information is essential for productive civic decision-making. Good information can be thought of as that which is recognized as objective, independently verifiable, and sufficiently comprehensive so as to provide different perspectives on an issue. This is particularly important with AI, where the technology is changing quickly and many of its impacts remain uncertain. Ensuring the public has access to good information helps people evaluate competing claims, ask better questions, weigh benefits and risks, and contribute constructively to decisions that may affect their lives and communities.

	<i>Examples of Policy Options</i>	<i>Examples of Considerations</i>
1	Establish a “Facts on AI Infrastructure” online dashboard. <i>Require the state to report key facts on AI infrastructure operations (for example, water use, noise levels, energy consumption, and clean energy power) on a quarterly basis. The data should be independently verified and appear on an easily accessible public website.</i>	(Pro) This could make important information easier for the public to access and compare over time. (Con) Collecting, verifying, and maintaining accurate data could be administratively burdensome.
2	Establish a public register of the state's AI systems. <i>Produce and maintain an inventory of all AI systems used by state and local agencies, what those systems decide, and who is accountable for any actions they take or that are attributed to them.</i>	(Pro) This could increase transparency by allowing the public to see where government is using AI and who is responsible for it. (Con) Maintaining a comprehensive inventory may require significant resources; does every single thing need to be included? Will people actually use it?
3	Publish Office of Artificial Intelligence Policy (OAIP) agreements on the OAIP website. <i>This could include any agreement that modifies standard legal requirements on behalf of a specific company, as well as any related information pertaining to performance, safeguards, and enforceability.</i>	(Pro) This could allow the public to understand when exceptions are granted and what safeguards accompany them. (Con) In some cases, disclosure of this kind may discourage companies from participating. Others may consider the step too narrow. Should more information be required (such as the justification for the change, the public benefits, enforcement conditions, etc.)?
4	Provide public AI literacy funding <i>through libraries, USHE (Utah System of Higher Education), and school districts to prepare the public to engage on issues related to AI development from a position of being well-informed and prepared to think critically.</i>	(Pro) Better-informed citizens may be better prepared to participate in public discussions and make personal decisions about AI. (Con) AI literacy does not guarantee meaningful public consultation, and some may question how to ensure materials remain politically neutral.

II. Include the Public in Thorough Due Diligence Before New AI Policies are Adopted

Government decisions involving new technologies can have consequences for people, communities, and taxpayers that are difficult or costly to undo. Taking the time before decisions are final to investigate likely benefits, costs, risks, and alternatives — and to hear from the people who may be affected — can identify problems and improve policies before public dollars are committed or avoidable harm occurs. The goal is to get important decisions as right as possible from the start, rather than relying on the public to bear the cost of fixing them later.

Examples of Policy Options		Examples of Considerations
1	Require impact assessments for government use of AI algorithms. Before deploying AI for significant public-sector decisions, government agencies should be required to evaluate and document the system's intended purpose, expected benefits, potential risks, likely impacts on affected individuals, available alternatives, and measures for oversight and accountability. These assessments should be fully disclosed to the public.	(Pro) This could encourage agencies to identify risks, consider alternatives, and explain their reasoning before deploying AI. (Con) Additional review requirements may slow implementation and increase administrative costs. Also, what is an unacceptable risk, and what happens if an assessment identifies one?
2	Require resource usage disclosure prior to siting a data center. Before data centers over a certain size are approved, the developer should file what it expects to use in terms of electricity, water, and land, along with the infrastructure it will require, how that will be financed over time, and how long the facility is expected to be in service. Utah already requires data centers to disclose estimated water use. Extending that to energy demand, grid costs, and employment projections would let a community evaluate a proposal against stated figures rather than assurances, and would create a record to measure the project again once it is running.	(Pro) This could give communities and policy makers better information about expected demands on water, energy, land, and public infrastructure before decisions are made. (Con) Forecasts may be uncertain, and additional disclosure requirements could discourage investment or delay projects.
3	Require corporate track record disclosure (and a public vote to approve proposals). Require AI infrastructure proposals to disclose full corporate ownership and a review of the applicant's track record in other communities (including utility-cost impacts, environmental and noise record, water usage, job creation, and community-benefit performance). This should take place in a public hearing and be entered into the public record, noting where claims cannot yet be verified. Approval of such proposals should require a public vote of the body with jurisdiction over the decision.	(Pro) This could help decision-makers and the public evaluate proposals based on a company's past performance rather than promises alone, and increase company accountability. (Con) Past performance may not always predict future results, and requiring public votes could lengthen or politicize the approval process. The public-vote requirement also could be difficult to apply consistently.

(These prompts represent a range of views; they are not recommendations.)

4	Require community benefit analyses before local or state tax breaks or other incentives are granted. Before an incentive (such as a tax break) is approved, an independent evaluator should assess whether the agreement is expected to produce a net benefit to the community, and that finding should govern whether the incentive proceeds and on what terms.	(Pro) This could encourage public incentives to be based on evidence that a project is expected to provide net community benefits. (Con) Measuring community benefits involves assumptions that reasonable people may dispute, and the process could slow valuable economic development.
5	Specify policy areas where public input is mandatory. Certain categories of AI infrastructure and use should require thorough public consultation before adoption. These might include data centers as well as systems affecting children and schools, employment, policing, health care, or eligibility for public benefits — areas where errors are hardest to reverse and those affected have the least ability to opt out.	(Pro) This could ensure greater public input when AI affects areas with significant consequences, such as education, policing, or public benefits, and it may well reduce the chance of future harm. (Con) Determining which uses require consultation may be difficult and likely would delay the decision-making process to some degree.

III. Design AI-Related Policy Choices to Remain Accountable to the Needs and Priorities of the Public

Successful public consultation should instill in the public confidence in the ultimate judgement of policy makers, and the belief that their decisions are driven by a desire to serve the public interest first and foremost — not undisclosed private interests or influences. Safeguards that promote transparency and accountability play an important role in protecting the integrity of the process, which can increase voter trust and convey that civic participation matters — that public officials care, are listening, and will be responsive to what they learn through these interactions.

Examples of Policy Options		Examples of Considerations
1	Prohibit legislators and other public officials from signing non-disclosure agreements related to public business. State and local elected officials should not enter into non-disclosure agreements (NDAs) that prevent them from sharing information about proposed AI technology or infrastructure projects, and companies seeking public approvals, regulatory changes, or other actions should not be permitted to require public officials or civil servants to do so.	(Pro) An NDA can create a private obligation to withhold information that conflicts with a public official's responsibility to both accurately inform the people they serve and act in their best interest at all times. (Con) Companies may be less willing to share sensitive or proprietary information with public officials if they cannot require that it remains confidential.
2	Require recusal for direct financial conflicts of interest. Elected officials should not participate in or vote on a decision involving an AI technology or infrastructure project when the official or an immediate family member has a direct financial interest in the developer, landowner, or other entity that would benefit, financially or otherwise, from the decision.	(Pro) This could ensure that public decisions are based on the public interest rather than the personal financial interests of the officials making them. (Con) Recusal requirements could prevent officials with relevant knowledge or experience from participating in decisions, even when their financial interest is unlikely to affect their judgment.
3	Hold companies accountable for commitments to communities and the state. Require companies that breach signed commitments to the community or state to be allowed 90 days to remedy the matter after being notified, and face specified penalties if they fail to do so.	(Pro) This could ensure harms are remedied as provided for in the law and that companies understand violations will be enforced, and in a timely manner. (Con) Some violations may be too complex to resolve within a fixed timeframe, making rigid deadlines difficult to meet. If this results in the law not being enforced as written, it will increase the difficulty of future enforcement.
4	Provide public instruction on how to hold government accountable, including understanding and accessing public records, participating in hearings, identifying where to submit comments or complaints, how best to communicate with elected officials, etc.	(Pro) This could make public participation more accessible to people who are not already familiar with government, giving them practical tools to navigate the process and make their input more effective. (Con) Some may question whether this is an appropriate use of taxpayer dollars, particularly if they believe it could increase opposition to policies or projects they support.

IV. Continue to Verify Ongoing Efficiency and Public Benefit of AI-Related Policies or Programs

Even well-designed policies need to be evaluated over time. Circumstances can change, making a policy that once worked well less effective or appropriate, and policies do not always produce the results policymakers expected when they were adopted. Ongoing oversight allows the public and decision-makers to compare what was expected with what is actually happening — including the benefits, costs, and unintended consequences. For voters and taxpayers, this can provide an important measure of accountability and allow problems or gaps to be identified and addressed before they become more costly or difficult to fix.

Examples of Policy Options		Examples of Considerations
1	Establish funded data center watchdog teams at the city or county level. Every data center over a certain size would pay a yearly, size-based fee set by law, funding city or county staff to check reports, run spot checks, etc. with testing by outside experts who answer only to the city/county.	(Pro) This provides dedicated resources to verify compliance and identify problems before they become more serious. (Con) Annual fees and oversight costs could increase the cost of development and ultimately be passed on to consumers or taxpayers.
2	Require accountability standards in public-sector AI contracts. Contracts for AI systems should establish requirements for transparency, privacy, security, auditing, and reporting, and preserve the government's ability to suspend or terminate systems that fail to perform as promised or create unacceptable risks.	(Pro) This could help ensure government agencies can hold AI vendors accountable if their systems fail to perform as promised or create unacceptable risks. (Con) More stringent contract requirements could increase costs and discourage some AI vendors from doing business with government.
3	Require a process to address harm caused by government use of AI. When AI materially influences a government decision affecting an individual, require notice that AI was used and provide an opportunity for human review in cases of verifiable harm, correction of inaccurate information, and appeal.	(Pro) This could provide a clear way to identify and correct harmful or inaccurate AI-influenced government decisions. (Con) Requiring human review and appeal could reduce the efficiency and cost savings of using AI, particularly if large numbers of people challenge automated decisions.
4	Require periodic review of enacted AI policies and programs. Within three years of enactment, require the state to assess whether significant AI-related policies are achieving their stated goals and producing the anticipated costs and benefits. Findings should be made public, with an opportunity for public input on whether the policy should be continued, modified, or discontinued.	(Pro) This could help ensure that AI policies and programs continue delivering promised benefits over time and continue to be a good use of public funds. (Con) Mandatory reviews could consume significant government time and resources, particularly as the number of AI-related policies and programs grows.